

However, Defendant seeks 2.0 hours for appearing at the hearing on this motion. The Court strikes 1.0 hour from the expended time, and award \$2,400.00 [8.0 hours x \$300.00/hour].

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505479	FABIE VS HYUNDAI MOTOR AMERICA	DEMURRER

Tentative Ruling: Defendant's Demurrer is sustained without leave to amend.

REQUEST FOR JUDICIAL NOTICE

Defendant asks the Court to take judicial notice of (1) Plaintiff's original Complaint, filed 8/20/25; (2) Plaintiff's counsel declaration, her opposition to the demurrer to the FAC, filed 5/7/26; and (3) the fact that Defendant opted in to C.C.P. §§ 871.20-871.30. Plaintiff does not object, and these facts/documents are the proper subject of judicial notice. (Evid. Code § 452(d), (h).) Accordingly, the request is granted.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

CAUSES OF ACTION (1ST-5TH) - THE STATUTE OF LIMITATIONS.

C.C.P. 871.20, effective January 1, 2025, "applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (C.C.P. § 871.20.) Judicially noticeable facts show that Defendant elected to proceed under C.C.P. §§ 871.20 et. seq. [RFJN iso Reply, Ex. B], and Plaintiff seeks restitution or replacement of the Vehicle in this action [see, SAC at ¶¶ 18, 26, Prayer at ¶ B], so this is an action covered by C.C.P. § 871.20.

C.C.P. § 871.21 provides the time in which such an action must be filed. It states as follows:

- (a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) *Notwithstanding subdivision (a)*, an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(C.C.P. § 871.21 (a)-(b) [emphasis added].)

Defendant argues that because the Vehicle was originally delivered in 2016, and Plaintiff did not bring this action until 2025, it is barred by the statute of limitations set forth in C.C.P. § 871.21. The Court overruled Defendant's prior demurrer on this basis, finding that while it appeared the claims were barred, it was not clear from the FAC that they were definitively barred by C.C.P. § 871.21(b). However, in the SAC, Plaintiff now alleges that the Vehicle was initially offered for sale on February 5, 2016. (SAC at ¶ 10.) Plaintiff argues that being "initially offered for sale" is not the same as "the date of original delivery" for purposes of triggering the statute of limitations. However, "tender of delivery" of a vehicle means the same thing as the purchase/sale of the vehicle. (See, *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306.) Thus, by alleging that the Vehicle was initially offered for sale on February 5, 2016, Plaintiff does, in fact, state in her SAC that February 5, 2016 was "the date of original delivery." As August 20, 2025 (the date the action was filed) is 9 1/2 years after the date of original delivery, and C.C.P. § 871.21(b) requires any action seeking restitution or replacement of a vehicle to be filed within 6 years, Plaintiff's Song Beverly Act claims are barred by the statute of limitations set forth in C.C.P. 871.21.

Plaintiff argues that her claims are not barred because the warranties issued with the Vehicle did not expire until late 2025 and February 2026. (Opposition, pp. 6:21-7:17.) While Plaintiff is correct that C.C.P. § 871.21(a) states that "[a]n action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty," subsection (b) states that "*notwithstanding subdivision (a)*," such an action must be brought within 6 years of original delivery. (C.C.P. § 871.21(a)-(b) [emphasis added].) Notwithstanding means "despite" or "in spite of what has just been said or expressed." (<https://www.merriam-webster.com/dictionary/notwithstanding>.) Thus, while an action for restitution or replacement of a vehicle must be brought within one year of the expiration of the applicable warranty, it must also be brought within 6 years of the date the vehicle was originally delivered/sold. Therefore, contrary to Plaintiff's contention, regardless of when the applicable warranties expired, her action was required to be filed within 6 years of the initial delivery/sale of the Vehicle, and it was not.

Plaintiff also argues that even if the 6-year statute of limitations applies, it was tolled while repairs were made to the Vehicle, and she did not discover the defects until late 2024. (Opposition, pp. 8:13-10:12.) C.C.P. § 871.21(c) states: "The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows: (1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days." (*Ibid.*) None of these sections for tolling applies here.

First, Civ. Code § 1793.22(c), which applies to third-party dispute resolution procedures, states that “[a]ny period of limitation of actions under any federal or California laws with respect to any person *shall be extended for a period equal to the number of days between the date a complaint is filed with a third-party dispute resolution process and the date of its decision or the date before which the manufacturer or its agent is required by the decision to fulfill its terms if the decision is accepted by the buyer, whichever occurs later.*” (Civ. Code § 1793.22(c) [emphasis added].) In the SAC, Plaintiff alleges that in February 2025, she made a written request to Defendant for repurchase or replacement of the Vehicle; Defendant denied the request and directed Plaintiff to Defendant’s third-party dispute resolution program; on August 6, 2025, Plaintiff filed a claim with the third-party dispute resolution program; and on August 7, 2025, that claim was denied. (SAC at ¶¶ 18-19.) First and foremost, the statute of limitations had already expired by the time Plaintiff filed her claim with Defendant’s third-party dispute resolution program, so doing so could not revive the expired claims. Additionally, Plaintiff acknowledges that her claim was denied within 1 day, so even if the limitations period could be tolled, the 1 additional day is of no assistance to Plaintiff.

The limitations period is also tolled for “the time the motor vehicle is out of service by reason of repair for any nonconformity.” (C.C.P. § 871.21(c)(2).) Plaintiff alleges in the SAC that she first delivered the Vehicle to Defendant’s authorized repair facility on November 29, 2024, and it was returned on November 30, 2024 (1 day); she again delivered the Vehicle to Defendant’s authorized repair facility on December 3, 2024, and it was returned on December 13, 2024 (10 days); and thereafter, she delivered the Vehicle to Defendant’s authorized repair facility on December 14, 2024, and it was returned on January 28, 2025 (45 days). (SAC at ¶¶ 15-16.) This results in a total of 56 out of service days, which also does not assist Plaintiff because (1) all of the repair visits occurred after the limitations period already expired, and (2) the action was filed 3 1/2 years after the statute of limitations on Plaintiff’s claims ran, so tolling of 56 days still does not bring the claims within the limitations period.

Finally, the limitations period is tolled for “the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24,” up to 60 days. (C.C.P. § 871.21(c)(3).) As with the above, tolling the statute of limitations for 60 days, when the action was filed 3 1/2 years after the limitations period expired, does not bring the claims within the statute of limitations period.

Plaintiff’s awareness of the defects, in cases discussing the statute of limitations on Song Beverly Act claims prior to the enactment of C.C.P. § 871.20 et. seq., California courts have held that limitation period runs “from the date the goods are delivered (regardless of the date the buyer discovers the breach)...” (*Cardinal Health 301, Inc. v. Tyco. Electronics Corp.* (2008) 169 Cal.App.4th 116, 129; see also, *Mexia, supra*, 174 Cal.App.4th at 1305-1306.) There is no reason this same rule should not apply to the statute of limitations set forth in C.C.P. § 871.21. Therefore, Plaintiff’s Song Beverly Act claims are barred by the statute of limitations.

She argues that C.C.P. § 871.21 does not apply to the claims for implied warranty and availability of service-literature/part. However, C.C.P. § 871.21 provides the timeframe

for when “an action covered by Section 871.20” must be brought, and C.C.P. § 871.20 states that it “applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (C.C.P. § 871.20.) These sections do not state that they apply to specific Song Beverly Act claims, but instead to “an action brought against a manufacturer” in which the purchaser seeks “restitution or replacement of a motor vehicle” pursuant to the Song Beverly Act. The action filed by Plaintiff is such an action. (See, SAC at ¶¶ 18, 26, Prayer at ¶ B.) Accordingly, C.C.P. §§ 871.20 and 871.21 apply to all of Plaintiff’s Song Beverly Act claims, and these claims are clearly barred by the statute of limitations based on the allegations of the SAC. Accordingly, the demurrer is sustained. (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321; *Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881; *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

As there is no reasonable possibility that these defects can be cured. (*Silva v. Block* (1996) 49 Cal.App.4th 345, 349; see also, *T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 162, 226 Cal.Rptr.3d 336, 407 P.3d 18; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

MMWA (6TH-8TH) CAUSES OF ACTION

Defendant argues that since Plaintiff has no viable Song Beverly Act claim, her MMWA claim is also precluded.

“Magnuson-Moss governs warranties for consumer products distributed in interstate commerce. It requires disclosures in connection with written warranties, regulates the substantive content of warranties, and establishes a federal cause of action for breach of a written or an implied warranty (15 U.S.C. § 2310(d)), among other provisions. Magnuson-Moss does not substitute federal law for state law of consumer product warranties, but instead supplements state law.” (*Orichian v. BMW of N. Am., LLC* (2014) 226 Cal.App.4th 1322, 1330.) “Magnusson-Moss ‘calls for the application of state written and implied warranty law, not the creation of additional federal law,’ except in specific instances in which it expressly prescribes a regulating rule.” (*Daugherty v. American Honda Motor* (2006) 144 Cal.App.4th 824, 833.) Accordingly, the *Daugherty* court held that the “failure to state a warranty claim under state law necessarily constitute[s] a failure to state a claim under Magnuson-Moss.” (*Id.*; see also, *Arana v. Tesla Motors, Inc.* (C.D. Cal. 2023) 2023 WL 1796956 [“Defendant avers that MMWA claims rise or fall with underlying state-law claims, and because Plaintiff’s SBA claim fails, so must his MMWA claim. The Court agrees”]; *Hastings v. Ford Motor Company* (S.D. Cal. 2020) 495 F.Supp.3d 919, 923 [“Where, as here, a plaintiff sues under the Magnuson-Moss Warranty Act to challenge the defendant’s alleged breach of its warranties under state law, ‘the claims under the Magnuson-Moss Act stand or fall with [the plaintiff’s] express and implied warranty claims under state law’”]; *Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022 [“The district court held—and Clemens does not dispute—that the claims under the Magnuson–Moss Act stand or

fall with his express and implied warranty claims under state law. Therefore, this court's disposition of the state law warranty claims determines the disposition of the Magnuson–Moss Act claims]; *In re Toyota Motor Corp. Unintended Acceleration Mktg., Sales Pracs., & Prods. Liab. Litig.* (C.D. Cal. 2010) 754 F.Supp.2d 1145, 1188 [“Defendants and Plaintiffs agree that Plaintiffs’ claims pursuant to the [MMWA are] ... dependent upon their state-law warranty claims.”]; and *Lathrop v. Thor Motor Coach, Inc.* (2024) 105 Cal.App.5th 808, 823 [while the MMWA “establishes a federal cause of action for breach of a written or an implied warranty,” it “does not substitute federal law for state law of consumer product warranties, but instead supplements state law.”].) Here, Plaintiff’s MMWA claims fail because Plaintiff has stated no viable state law breach of warranty claim.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506426	HUDIBURGH VS NGUYEN	MOTION TO BE RELIEVED AS COUNSEL FOR HUONG GIANG NGUYEN

Tentative Ruling: Defendant HUONG GIANG NGUYEN’s Counsel’s Motion to be Relieved as counsel is granted.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601557	CATANZARITE VS COUNTY OF RIVERSIDE	MOTION TO STRIKE

CASE #	CASE NAME	HEARING NAME
CVRI2601557	CATANZARITE VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling: Defendant County of Riverside’s UNOPPOSED Demurrer as to the 2nd Cause of Action is sustained with leave to amend within 20 days.

As to the Motion to Strike it is granted; specifically, Page 4, line 1: “and attorney’s fees,” and Page 11, line 5: “and attorney’s fees.”

In the absence of an opposition, the Court is entitled to consider the lack of response as an admission that the motion is meritorious (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20). Because Petitioner has not briefed any issues in opposition, the Court deems any potential arguments against the set-aside to have been abandoned (*Arnold v. Dow Chemical Co.* (2001) 91 Cal.App.4th 698, 729).